

March 16, 2026
Dept. 9
Probate Tentative Rulings

1.	25PR0022	Estate of Daniel Martin Anzelc
Status of Administration		

Letters of Administration were issued on April 14, 2025.

TENTATIVE RULING #1: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, MARCH 16, 2026, IN DEPARTMENT NINE.

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, MARCH 15, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

March 16, 2026
Dept. 9
Probate Tentative Rulings

2.	24PR0304	ESTATE OF MICHAEL DWIGHT BAILEY
Final Distribution		

Letters of Administration/Letters Testamentary were issued on December 23, 2024, granting Petitioner full authority under the Independent Administration of Estates Act.

A Final Inventory and Appraisal was filed on July 7, 2025. At the time the inventory and appraisal is filed, you must also file a change of ownership statement with the county recorder or assessor in each county where the decedent owned real property at the time of death, as provided in section 480 of the California Revenue and Taxation Code.

Proof of Service of Notice of the hearing on the Petition was filed on February 27, 2026. No one has filed a request for special notice in this proceeding.

The proposed distribution of the estate is in equal shares to decedent's two children.

The Petition complies with Local Rule 10.07.12.

The Petition requests:

1. The First and Final Account filed with the Petition be settled, allowed and approved;
2. All acts, transactions and proceedings of the Administrator be ratified, confirmed and approved;
3. The Administrator be authorized to pay statutory attorney fees in the amount of \$10,615.28, plus \$1,393.20 for costs advanced to the estate;
4. The Administrator be authorized to reimburse himself for costs advanced to the estate in the amount of \$56,454.12;
1. Approval of distribution of the estate to the persons entitled to it pursuant to the Petition for Final Distribution;
2. Distribution of the estate in Petitioner's hands and any other property of the estate not now known or later discovered be distributed to the beneficiaries as set forth in the Petition;
5. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petitioner may be discharged and released from all liability that may be incurred thereafter.**

March 16, 2026
Dept. 9
Probate Tentative Rulings

TENTATIVE RULING #2: ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, MARCH 15, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

March 16, 2026
Dept. 9
Probate Tentative Rulings

3.	25PR0112	IN THE MATTER OF CHERYL ANN BRADLEY
Final Distribution		

Letters of Administration/Letters Testamentary were issued on July 7, 2025, granting Petitioner full authority under the Independent Administration of Estates Act.

A Final Inventory and Appraisal was filed on February 4, 2026. At the time the inventory and appraisal is filed, you must also file a change of ownership statement with the county recorder or assessor in each county where the decedent owned real property at the time of death, as provided in section 480 of the California Revenue and Taxation Code.

Proof of Service of Notice of the hearing on the Petition to any beneficiaries is not required, pursuant to Probate Code § 1201. A request for special notice was filed by the Internal Revenue Service in this proceeding, but there is no proof of service of notice to the IRS of the Petition.

The proposed distribution of the estate is 50 percent to Petitioner and 50 percent to Petitioner as trustee of a Special Needs Trust that was established by the Will of decedent.

The Petition complies with Local Rule 10.07.12.

The Petition requests:

1. The administration of the estate be brought to a close;
2. The First and Final Account filed with the Petition be settled, allowed and approved;
3. All acts, transactions and proceedings of Petitioner be ratified, confirmed and approved;
4. The Administrator be authorized to pay statutory attorney fees in the amount of \$10,510.01;
5. The Administrator be authorized to pay himself statutory compensation in the amount of \$10,510.01, and to reimburse himself \$19,022.20 for costs advanced to the estate;
6. Approval of distribution of the estate to the persons entitled to it pursuant to the Petition for Final Distribution;
7. Distribution of the estate in Petitioner's hands and any other property of the estate not now known or later discovered be distributed to the beneficiaries as set forth in the Petition;
8. The Administrator be authorized to retain \$5,000 in closing expenses and to pay liabilities, and to deliver the unused part to the beneficiaries of the estate without further court order after closing expenses have been paid;

March 16, 2026
Dept. 9
Probate Tentative Rulings

9. **Upon filing of receipts and the Ex Parte Petition for Discharge, Petitioner may be discharged and released from all liability that may be incurred thereafter.**

TENTATIVE RULING #3: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, MARCH 16, 2026, IN DEPARTMENT NINE.

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, MARCH 15, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

March 16, 2026
Dept. 9
Probate Tentative Rulings

4.	25PR0272	ESTATE OF WOOD
Petition to Reduce Bond		

Pursuant to Probate Code § 8481-8482, Petitioner requests authorization to eliminate the bond requirement for this estate. The Petition attaches waivers of bond from the other heir to the estate and requests that the requirement of posting a bond be reduced to zero.

TENTATIVE RULING #4: ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

March 16, 2026
Dept. 9
Probate Tentative Rulings

5.	25PR0004	IN THE MATTER OF SHAWN MARIE ALLEN-HICKS
Status of Administration		

Letters of Administration were issued on July 30, 2025. An Inventory and Appraisal was filed on February 19, 2026.

TENTATIVE RULING #5: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, MARCH 16, 2026, IN DEPARTMENT NINE.

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, MARCH 15, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

March 16, 2026
Dept. 9
Probate Tentative Rulings

6.	22PR0096	THE MATTER OF MATTHEW LITTRELL IRREVOCABLE SPECIAL NEEDS TRUST
Sixth Account and Report		

The venue of this Trust was transferred to El Dorado County from Solano County by Order of the Solano County Superior Court.

The Trust calls for accountings “in the manner and frequency required by Probate Code § 1060 and 2620, or as ordered by the Court.” Probate Code § 2620(a) provides that accountings are required “not less frequently than biennially, unless otherwise ordered by the court to be more frequent, . . .”

The Fifth Account and Report was approved by the court at a hearing held on March 25, 2024, and a hearing date was set on March 16, 2026, for a hearing on the Sixth Account and Report.

No Petition for approval of the Sixth Account and Report of Trustee has been filed.

TENTATIVE RULING #6: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, MARCH 13, 2026, IN DEPARTMENT NINE.

A REVIEW HEARING FOR THE SEVENTH ACCOUNT AND REPORT IS SET FOR 8:30 A.M. ON MONDAY, MARCH 13, 2028, IN DEPARTMENT NINE.

March 16, 2026
Dept. 9
Probate Tentative Rulings

7.	25PR0305	ESTATE OF ABRAHAMSON
Succession to Real Property		

Decedent died on December 25, 2019. This Petition is filed by Myrna Lunceford and Deborah Land, who are presumably decedent's siblings, pursuant to Probate Code § 13150 et seq. That statute allows the Court to determine succession to real property outside of probate for real property that is valued at less than \$166,250 for a decedent who died prior to April 1, 2022. The Petition indicates that the decedent died intestate with no surviving parents, children or spouse, and that no probate was opened for the estate.

Item 14 of the Petition indicates that the names of decedent's siblings are attached to the Petition but no such attachment is included with the filed document. The Petition indicates that the value of decedent's real property is less than the limit for a small estate. Probate Code § 13151. However, the Petition does not attach an inventory and appraisal (Judicial Council Forms DE-160, DE-161), nor does the Petition identify the real property, as required by the statute. Probate Code § 13152.

The matter was heard on December 29, 2025, but there were no appearances. The Court continued the matter to allow the Petitioners an opportunity to conform the Petition to the requirements of Probate Code § 13152.

TENTATIVE RULING #7: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, MARCH 16, 2026, IN DEPARTMENT NINE.

March 16, 2026
Dept. 9
Probate Tentative Rulings

8.	22PR0228	ESTATE OF MARSHALL
Status of Administration		

TENTATIVE RULING #8: AN ORDER FOR FINAL DISCHARGE HAVING BEEN ENTERED BY THE COURT ON JULY 7, 2025, THE MATTER IS DROPPED FROM CALENDAR.

March 16, 2026
Dept. 9
Probate Tentative Rulings

9.	25PR0332	MATTER OF WINTERS FAMILY TRUST
Accounting		

The parties have entered into a Stipulation that requests the Court to continue the hearing date.

TENTATIVE RULING #9: THE MATTER IS CONTINUED TO 8:30 A.M. ON MONDAY, MAY 11, 2026 IN DEPARTMENT NINE.

March 16, 2026
Dept. 9
Probate Tentative Rulings

10.	25PR0341	ESTATE OF MOULTON
Letters of Administration		

Decedent died intestate on January 3, 2025. Petitioner is decedent's granddaughter.

The Petition requests full authority under the Independent Administration of Estates Act.

A Duties/Liabilities statement (DE 147/DE 147s) was filed on February 5, 2026.

Proof of service of notice of the hearing on the Petition was filed on February 5, 2026.

Proof of publication was filed on February 27, 2026.

TENTATIVE RULING #10: ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

A STATUS OF ADMINISTRATION HEARING IS SET FOR 8:30 A.M. ON MONDAY, MARCH 15, 2027, IN DEPARTMENT NINE. PETITIONER OR COUNSEL ARE ORDERED TO PERSONALLY APPEAR, OR FILE A STATUS UPDATE WITH THE COURT AT LEAST TWO WEEKS BEFORE THAT HEARING.

March 16, 2026
Dept. 9
Probate Tentative Rulings

11.	PP20200225	ESTATE OF ROBERT THARRAT
Letters of Administration		

Decedent Tharrat's estate is named in a federal personal injury lawsuit brought by the representative of the Estate of Joaquin Diaz ("Petitioner"). Decedent's estate was named in the lawsuit as of August 31, 2021, and decedent's estate filed an Answer on January 27, 2025.

Decedent's estate has a Special Administrator who was appointed for the sole purpose of filing a claim on behalf of decedent with the September 11 Victim Compensation Fund.

Petitioner attempted to file a late creditor claim in this probate matter in an unspecified amount, reflecting a potential award of damages in the federal lawsuit. This claim was later withdrawn because the claim was filed too late, the Special Administrator had no authority to pay decedent's debts, and the Petitioner had no legal claim against the personal representative. See, Tentative Ruling, December 1, 2025.

Now Petitioner has filed a Petition to administer decedent's estate. However, there is no proof of publication, Duties/Liabilities statement (DE 147/DE 147s) or proof of service of notice of the hearing on the Petition on file with the Court.

TENTATIVE RULING #11: THIS MATTER IS CONTINUED TO 8:30 A.M. ON MONDAY, MAY 11, 2026, IN DEPARTMENT NINE TO ALLOW PETITIONER TIME TO FILE A DUTIES/LIABILITY STATEMENT, PROOF OF PUBLICATION AND PROOF OF SERVICE WITH THE COURT.

March 16, 2026
Dept. 9
Probate Tentative Rulings

12.	25PR0224	ESTATE OF TUTTLE-THOMAS
Spousal Property		

Decedent died on August 5 2025, survived by a spouse (Petitioner), her mother, and two minor children. This matter was heard on September 29, 2025, and the Court instructed the Petitioner to appoint a guardian ad litem for the minor children.

The Petition did not indicate whether the decedent died testate or intestate.

The Petition indicated that the decedent and surviving spouse had a written agreement for division of the property, but no agreement was attached to the Petition.

TENTATIVE RULING #12: APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, MARCH 16, 2026, IN DEPARTMENT NINE.

March 16, 2026
Dept. 9
Probate Tentative Rulings

13.	22PR0301	ESTATE OF VISMAN
Petition for Instructions		

The Petitioner was issued Letters of Administration for decedent's estate with full authority on March 13, 2023. Petitioner is an officer, director and shareholder of the El Dorado Orchards, Inc. ("EDO"), as are Petitioner's brothers, Michael and Mark Visman. EDO has notified Petitioner that it has a claim against the estate based on an indemnification agreement. Petition, Exhibit A. Petitioner seeks the Court's instructions, given that he has a potential conflict of interest as between his role as Administrator and his position with EDO.

EDO has not filed a creditor claim against the estate. EDO claim arises out of a federal trademark litigation against EDO that commenced on November 29, 2029, and alleged that decedent and EDO had violated the plaintiff's trademarks. This included the decedent's registration of a domain name and development and publication of a website using the contested trademark. This litigation is ongoing.

EDO argues that an oral statement made by decedent at a May 9, 2022, EDO Board meeting that he would indemnify EDO for financial damages. That statement, as reflected in the EDO Board meeting minutes is attached to the Petition as Exhibit C:

10:15 am Lawsuit update Apple Hill Growers v. El Dorado Orchards, Inc. Everyone discusses. Mason answers questions about what's going on. Updates about Growers not having any of their (sic) evidence turned in. We talked about liability. If there are any financial damages to El Dorado Orchards Mason agreed to pay for all financial damages, attorney fees, etc.

Petitioner argues that decedent was an employee of EDO and as such, must be indemnified by his employer pursuant to Labor Code § 2802(a):

An employer shall indemnify his or her employee for all necessary expenditures or losses incurred by the employee in direct consequence of the discharge of his or her duties, or of his or her obedience to the directions of the employer, even though unlawful, unless the employee, at the time of obeying the directions, believed them to be unlawful.

Petitioner further argues that any purported indemnification undertaken by decedent is null and void pursuant to Labor Code § 2804:

Any contract or agreement, express or implied, made by any employee to waive the benefits of this article or any part thereof, is null and void, and this article shall not deprive any employee or his personal representative of any right or remedy to which he is entitled under the laws of this State.

March 16, 2026
Dept. 9
Probate Tentative Rulings

Although Petitioner points to W2s issued to decedent between 2012-2016 as evidence of his employment status, EDO's demand letter indicates that decedent was issued 1099 forms as an independent contractor between 2018-2022, and he received neither a W2 nor a 1099 in 2017. According to the Petition, decedent's role as an employee was marketing and advertising, the same activities that underlie the federal trademark litigation. This included registering the website domain name in 2014, when he was a W2 employee, and managing the website content thereafter. This is the same time period that is the subject of the federal Complaint. Petition, Exhibit B.

Petitioner further asserts that EDO's claim is not valid because EDO claimed ownership of the digital assets created by decedent and secured those rights through a Probate Code § 850 petition to this Court, which was granted. Petition, Exhibit F. Petitioner asserts that EDO is prevented by judicial and equitable estoppel from denying decedent's employment status when it claimed ownership of the digital assets in the Probate Code § 850 petition on the basis that decedent created them in the course and scope of his employment.

Finally, EDO has not submitted a creditor claim against the estate, and the time for filing such a claim has now expired.

Proof of service of notice of the Petition was filed on February 13, 2026. No objection to the Petition has been filed as of March 13, 2026.

1. Finding that the actions of decedent complained of in the lawsuit brought by Apple Hill Growers in case #2:17- cv-02085-TLN-CKD filed in the United States District Court for the Eastern District of California, arose out of the course and scope of decedent's employment with El Dorado Orchards, Inc. and decedent was therefore entitled to the protections of Labor Code Sections 2802 and 2804;
3. Finding that any agreement by decedent to indemnify El Dorado Orchards, Inc. is null and void;
4. Finding that more than four months have elapsed since the date letters were first issued to petitioner and the time for filing creditors' claims expired on July 13, 2023;
5. Finding that the one-year statute of limitations provided under Section 366.2 of the Code of Civil Procedure expired on November 11, 2023 and thus that no action may now be brought against decedent on a theory of liability, whether arising in contract, tort, or otherwise;

March 16, 2026
Dept. 9
Probate Tentative Rulings

6. Instructing petitioner, as personal representative of the estate, to therefore deny any claim of indemnity against the estate presented by El Dorado Orchards, Inc.

TENTATIVE RULING #13: ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).